

NFStudio's Terms of Service

Last Updated: 10/04/2024

Please read these Terms of Service (the “**Terms**”) and our Privacy Policy (<https://nfstudio.xyz/privacy-policy.pdf>) (“**Privacy Policy**”) carefully because they govern your use of the website and interface located at <https://nfstudio.xyz> (the “**Site**” or the “**NFStudio Platform**”) and other services and resources that are available, enabled or offered by NFStudio (“**NFStudio**”, “**us**”, “**we**” or “**our**”), which facilitates the creation or generation of custom **.PNG** images created or generated from non-fungible tokens (“**NFTs**”) associated metadata. NFTs are recorded on public and decentralized blockchains (“**Blockchain**”) which is public accessible data, and the NFTs’ associated metadata are recorded on public and decentralized storage services, which is public accessible data. To make these Terms easier to read, the Site and our services are collectively called the “**Services**”. These Terms do not govern any interactions you may have with our third-party API providers, each of which has its own terms. We are solely the provider of the Services.

IMPORTANT NOTICE: WHEN YOU AGREE TO THESE TERMS YOU ARE AGREEING TO RESOLVE ANY DISPUTE BETWEEN YOU AND NFSTUDIO THROUGH BINDING, INDIVIDUAL CONTACT RATHER THAN IN COURT.

1. **Agreement to Terms.** By using the Services, you agree to be bound by these Terms. If you don’t agree to be bound by these Terms, **you are not authorized to use the Services.**
2. **Privacy Policy.** Please review our Privacy Policy, which also governs your use of the Services, for information on how we collect, use and share your information.
3. **Changes to these Terms or the Services.** We may update the Terms from time to time at our sole discretion. If we do, we’ll let you know by posting the updated Terms on the Site. It’s important that you review the Terms whenever we update them or you use the Services. If you continue to use the Services after we have posted updated Terms, it means that you accept and agree to the changes. If you don’t agree to be bound by the changes, you may not use the Services anymore. Because the Services are evolving over time, we may change or discontinue all or any part of the Services, at any time and without notice, at our sole discretion.
4. **Who May Use the Services?**
 - (a) **Eligibility.** **YOU MAY USE THE SERVICES ONLY IF YOU ARE 18 YEARS OR OLDER AND CAPABLE OF FORMING A BINDING CONTRACT WITH**

NFSTUDIO, AND NOT OTHERWISE BARRED FROM USING THE SERVICES UNDER APPLICABLE LAW.

As required by the Children's Online Privacy Protection Act, we will not knowingly solicit or collect personal information from any user under the age of 13. Do not attempt to use the Services if you are under the age of 13. If we become aware that a user is under the age of 13, we will promptly delete all personal information of the user. If you have information that suggests that a user of the Service could be under the age of 13, please send an email to legal@nfstudio.xyz.

- (b) **Compliance**. You must not use any software or networking techniques, including use of a Virtual Private Network (VPN) to modify your internet protocol address or otherwise circumvent or attempt to circumvent this prohibition. We reserve the right, but have no obligation, to monitor where the Services are accessed from. Furthermore, we reserve the right, at any time, at our sole discretion, to block access to the Services, in whole or in part, from any geographic location, IP addresses and unique device identifiers or to any user who we believe is in breach of these Terms.
- (c) **Unauthorized Access**. You may not access or utilize the Site and/or Services for the purpose of web crawling, web harvesting, data mining, data extraction, scraping or aggregating information without our prior written consent. Engaging in any of the previous activities without prior authorization is a prohibited material breach of these Terms and may subject violators to legal liability.

5. About the Services.

- (a) **NFStudio Platform**. The Services facilitate the creation or generation of custom **.PNG** images created or generated from NFTs associated metadata. By using the Services, individuals can easily create a custom **.PNG** image wallpaper or banner.

(i) You may participate in the Services by using your digital wallet(s) on supported bridge extensions through our third-party payment provider which will allow you to purchase a custom **.PNG** image wallpaper or banner through a transaction using cryptocurrency. Upon a successful payment, individuals will be allowed to download the custom **.PNG** image wallpaper or banner.

(ii) NFSTUDIO PLATFORM IS NOT A BROKER, FINANCIAL INSTITUTION, OR CREDITOR. THE SERVICES ARE A PROVIDER PLATFORM

ONLY. NFSTUDIO FACILITATES THE CREATION OR GENERATION OF **.PNG** IMAGES SO THAT INDIVIDUALS CAN EASILY CREATE A CUSTOM **.PNG** IMAGE.

(iii) NFSTUDIO DOES NOT OWN OR HAS ANY PROPERTY RIGHTS CLAIM OVER THE NFT COLLECTIONS THAT PRESENTS IN THE PLATFORM. WE ONLY GROUP TOGETHER PUBLICLY AVAILABLE DATA TO FACILITATE AND PROVIDE THE SERVICES.

- (b) **Transactions Are Conducted on the Blockchain.** You will be required to make payments exclusively through the cryptocurrency wallet you have connected to the third party integration NFStudio is using to provide payments. We will have no insight into or control over these payments or transactions, nor do we have the ability to reverse any transactions. Accordingly, we will have no liability to you or to any third party for any claims or damages that may arise as a result of any transactions that you engage in via the Service.
- (c) **Terms Applicable to Purchasers.** If you are using the Services to purchase **.PNG** images, you are a “**Purchaser**” and you accept, acknowledge and agree to the following additional terms:

(i) **Costs and Fees.** Transactions on the NFStudio Platform are subject to the Services fee. This is a fixed fee with a cost equivalent to \$4 paid in whatever cryptocurrency available at the time of the purchase. You further agree to pay all applicable fees, including Gas Fees while using the Services. Interactions with the Blockchain result in transaction fees or Gas Fees (as defined below) imposed by the Blockchain, which are also solely your responsibility.

“**Gas fees**” mean fees that fund the network of computers that run decentralized blockchain networks, meaning that you will need to pay a Gas Fee for each transaction that occurs via a blockchain network.

(ii) **Purchase flow.** Upon selecting your custom **.PNG** image components, you will be asked to perform the payment of the Services fee through a third party payment provider. If that payment is successful, **we** create your custom **.PNG** image and present it to you in a downloadable format (“**.PNG**”). The Services are built on the application layer of the internet protocol, as such, there is a chance that the Services may fail to create your **.PNG** image after a successful payment. In that eventuality of a network error, **and only** in that eventuality, NFStudio might refund (see “Refunds” below) the Purchaser.

(iii) **Refunds.** **We** process any refunds at our sole discretion. Our system knows if a network error has happened after a successful payment and that

we failed to create your .PNG image. **That error on our side is the only thing that qualifies you to be refunded. Any other occurrence is not qualified as a valid refund.** NFStudio will process any refunds when **we** see fit, but it's expected to happen once a day (subject to change overtime). Any refund value will be 100% of the exact cryptocurrency value you paid for the Services fee, at the time of the purchase transaction. e.g., if you paid \$4 USDC or \$0.018 SOL, you should be refunded with \$4 USDC or \$0.018 SOL, respectively. **Any claim or dispute between you and NFStudio about an allegedly not refunded purchase should be resolved between you and NFStudio only, not on court.** If you think you should have been refunded and you were not, you can provide **us** with the transaction signature of your purchase and **we** will evaluate and confirm it in our system. **Our** system will always be considered the source of true.

- (d) **Updates.** The Services are evolving and you may be required to accept or install updates to the Services, or update third-party software (i.e., browsers) in order to keep using the Services or access their latest features, including security updates. We may update the Services at any time, without providing notice. It is your responsibility to ensure that you are using the most recent version of the Services at all times.

- 6. **Feedback.** We appreciate feedback, comments, ideas, proposals and suggestions for improvements to the Services ("**Feedback**"). If you choose to submit Feedback, you agree that we are free to use it without any restriction or compensation to you.

7. **Your Content.**

- (a) **Permissions to Your User Content.** By making any User Content available to NFStudio, you hereby grant to NFStudio a non-exclusive, transferable, worldwide, royalty-free license, with the right to sublicense, to use, copy, modify, create derivative works based upon, distribute, publicly display, and publicly perform your User Content in connection with operating and providing the Services agree that we are free to use it without any restriction or compensation to you.

- (b) **Your Responsibility for User Content.** You are solely responsible for all **your User Content that you provide to us**. You represent and warrant that you have (and will have) all rights that are necessary to grant us the license rights in your User Content under these Terms. You represent and warrant that your User Content that you provide to us and later used in the Services will not infringe, misappropriate or violate a third party's intellectual property rights, or rights of publicity or privacy, or result in the violation of any applicable law or regulation.

8. Acceptable Use Policy and NFStudio's Enforcement Rights. You agree not to do any of the following:

- (a) Use, display, mirror or frame the Services or any individual element within the Services, NFStudio's name, any NFStudio trademark, logo or other proprietary information, or the layout and design of any page or form contained on a page, without NFStudio's express written consent;
- (b) Access, tamper with, or use non-public areas of the Services, NFStudio's computer systems, or the technical delivery systems of NFStudio's providers;
- (c) Attempt to probe, scan or test the vulnerability of any NFStudio system or network or breach any security measures;
- (d) Avoid, bypass, remove, deactivate, impair, descramble or otherwise circumvent any technological measure implemented by NFStudio or any of NFStudio's providers or any other third party (including another user) to protect the Services;
- (e) Attempt to access or search the Services or download content from the Services using any engine, software, tool, agent, device or mechanism (including spiders, robots, crawlers, data mining tools or the like) other than the software and/or search agents provided by NFStudio or other generally available third party web browsers;
- (f) Send any unsolicited or unauthorized advertising, promotional materials, email, junk mail, spam, chain letters or other form of solicitation;
- (g) Use the Services, or any portion thereof, for any commercial purpose or for the benefit of any third party or in any manner not permitted by these Terms;
- (h) Forge any TCP/IP packet header or any part of the header information in any email or newsgroup posting, or in any way use the Services to send altered, deceptive or false source identifying information;
- (i) Attempt to decipher, decompile, disassemble or reverse engineer any of the software used to provide the Services;
- (j) Interfere with, or attempt to interfere with, the access of any user, host or network, including, without limitation, sending a virus, overloading, flooding, spamming, or mail bombing the Services;
- (k) Collect or store any personally identifiable information from the Services from other users of the Services without their express permission;

- (l) Impersonate or misrepresent your affiliation with any person or entity;
- (m) Fabricate in any way any transaction or process related thereto;
- (n) Disguise or interfere in any way with the IP address of the computer you are using to access or use the Services or that otherwise prevents us from correctly identifying the IP address of the computer you are using to access the Services;
- (o) Encourage or enable any other individual to do any of the foregoing.

NFStudio is not obligated to monitor access to or use of the Services or to review or edit any content. However, we have the right to do so for the purpose of operating the Services, to ensure compliance with these Terms and to comply with applicable law or other legal requirements. We reserve the right, but are not obligated, to remove or disable access to any content, including User Content, at any time and without notice, including, but not limited to, if we, at our sole discretion, consider it objectionable or in violation of these Terms. We have the right to investigate violations of these Terms or conduct that affects the Services.

9. **Copyright Policy.** Web3 intellectual property rights (“IP”) is somewhat a grey area. Currently in Web3 space, 99% of the projects does not have IP correctly setup. To say somewhere that a collection is protected by copyright and has IP is not enough. **Copyright and IP should be legally registered and explicitly setup and visible on a collection/brand official website and also need to be setup on chain for a given NFT collection/collectibles recorded on a blockchain.** By nature, **a decentralized and open source asset cannot have any type of IP, which by nature is centralized** and requires jurisdictions with rights, obligations and legal personalities. NFStudio does not act in bad faith nor it tries to ignore such rights on purpose. In fact, NFStudio believes that by making your NFT collection available in our platform, it increases your brand/collection exposure and reach to the communities, both in Web3 and Web2. NFStudio aims to grow together with the space and does not mean to disrespect or ignore any Web3 creators’ IP. If you, in **good faith**, feel that we are infringing copyright or IP please contact us, and we will review that immediately and remove any allegedly infringing content. If you do it, please provide all the required legal information for us to verify that we are indeed, infringing any legal and registered copyright/IP. In that case, you also accept and agree that we process such personal information for the resolution of that case.

10. **Links to Third Party Websites or Resources.** The Services may allow you to access third party websites or other resources. We provide access only as a convenience and are not responsible for the content, products or services on or available from those resources, websites, or links displayed on such resources or websites. You acknowledge sole

responsibility for and assume all risk arising from your use of any third party resources or websites.

11. **Warranty Disclaimers.** THE SERVICES, INCLUDING ANY CONTENT CONTAINED THEREIN, ARE PROVIDED ON AN “AS IS” AND “AS AVAILABLE” BASIS WITHOUT WARRANTIES OR CONDITIONS OF ANY KIND, EITHER EXPRESS OR IMPLIED. NFSTUDIO (AND ITS SUPPLIERS) MAKE NO WARRANTY THAT THE SERVICES: (I) WILL MEET YOUR REQUIREMENTS; (II) WILL BE AVAILABLE ON AN UNINTERRUPTED, TIMELY, SECURE, OR ERROR-FREE BASIS; OR (III) WILL BE ACCURATE, RELIABLE, COMPLETE, LEGAL, OR SAFE. NFSTUDIO DISCLAIMS ALL OTHER WARRANTIES OR CONDITIONS, EXPRESS OR IMPLIED, INCLUDING, WITHOUT LIMITATION, INCLUDING ANY IMPLIED WARRANTY OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, QUIET ENJOYMENT OR NON-INFRINGEMENT, TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, AS TO THE SERVICES, ANY CONTENT CONTAINED THEREIN. WE FURTHER EXPRESSLY DISCLAIM ALL LIABILITY OR RESPONSIBILITY IN CONNECTION WITH THIRD PARTY SERVICES. NOTHING HEREIN NOR ANY USE OF THE SERVICES IN CONNECTION WITH THIRD PARTY SERVICES CONSTITUTES OUR ENDORSEMENT, RECOMMENDATION OR ANY OTHER AFFILIATION OF OR WITH ANY THIRD PARTY SERVICES. NFSTUDIO DOES NOT REPRESENT OR WARRANT THAT ANY CONTENT ON THE SERVICES IS ACCURATE, COMPLETE, RELIABLE, CURRENT OR ERROR-FREE. WE WILL NOT BE LIABLE FOR ANY LOSS OF ANY KIND FROM ANY ACTION TAKEN OR TAKEN IN RELIANCE ON MATERIAL OR INFORMATION CONTAINED ON THE SERVICES. WHILE NFSTUDIO ATTEMPTS TO MAKE YOUR ACCESS TO AND USE OF THE SERVICES AND ANY CONTENT THEREIN SAFE, NFSTUDIO CANNOT AND DOES NOT REPRESENT OR WARRANT THAT THE SERVICES, ANY CONTENT THEREIN, OR OUR SERVERS ARE FREE OF VIRUSES OR OTHER HARMFUL COMPONENTS. WE CANNOT GUARANTEE THE SECURITY OF ANY DATA THAT YOU DISCLOSE ONLINE. YOU ACCEPT THE INHERENT SECURITY RISKS OF PROVIDING INFORMATION AND DEALING ONLINE OVER THE INTERNET AND WILL NOT HOLD US RESPONSIBLE FOR ANY BREACH OF SECURITY. NFSTUDIO WILL NOT BE RESPONSIBLE OR LIABLE TO YOU FOR ANY LOSS AND TAKES NO RESPONSIBILITY FOR, AND WILL NOT BE LIABLE TO YOU FOR, ANY USE OF THE SERVICES, INCLUDING BUT NOT LIMITED TO ANY LOSSES, DAMAGES OR CLAIMS ARISING FROM: (I) ANY USER ERROR; (II) SERVER FAILURE OR DATA LOSS; (III) BLOCKCHAIN NETWORKS, CRYPTOCURRENCY WALLETS OR CORRUPT FILES; (IV) UNAUTHORIZED ACCESS TO SERVICES; OR (V) ANY THIRD PARTY ACTIVITIES, INCLUDING WITHOUT LIMITATION THE USE OF VIRUSES, PHISHING, BRUTEFORCING OR OTHER MEANS OF ATTACK. THE SERVICES MAY NOT BE AVAILABLE DUE TO ANY NUMBER OF FACTORS INCLUDING, BUT NOT LIMITED TO, PERIODIC SYSTEM MAINTENANCE, SCHEDULED OR UNSCHEDULED, ACTS OF GOD, UNAUTHORIZED ACCESS, VIRUSES, DENIAL OF SERVICE OR OTHER ATTACKS,

TECHNICAL FAILURE OF THE SERVICES AND/OR TELECOMMUNICATIONS INFRASTRUCTURE OR DISRUPTION, AND THEREFORE WE EXPRESSLY DISCLAIM ANY EXPRESS OR IMPLIED WARRANTY REGARDING THE USE AND/OR AVAILABILITY, ACCESSIBILITY, SECURITY OR PERFORMANCE OF THE SERVICES CAUSED BY SUCH FACTORS. WE DO NOT MAKE ANY REPRESENTATIONS OR WARRANTIES AGAINST THE POSSIBILITY OF DELETION, MISDELIVERY OR FAILURE TO STORE COMMUNICATIONS, PERSONALIZED SETTINGS OR OTHER DATA.

12. Assumption of Risk. You accept and acknowledge:

- (a) There are risks associated with using an Internet based currency, including but not limited to, the risk of hardware, software and Internet connections, the risk of malicious software introduction, and the risk that third parties may obtain unauthorized access to information stored within your wallet. You accept and acknowledge that NFStudio will not be responsible for any communication failures, disruptions, errors, distortions or delays you may experience when using the Services for transactions, however caused.
- (b) The regulatory regime governing blockchain technologies, cryptocurrencies, and tokens is uncertain, and new regulations or policies may materially adversely affect the development of the Services.
- (c) The Services may rely on third-party platforms to perform transactions with respect to any cryptocurrency assets. If we are unable to maintain a good relationship with such platform providers; if the terms and conditions or pricing of such platform providers change; if we violate or cannot comply with the terms and conditions of such platforms; or if any of such platforms loses market share or falls out of favor or is unavailable for a prolonged period of time, access to and use of the Service will suffer.
- (d) By accessing and using the Services, you represent that you understand the inherent risks associated with using cryptographic and blockchain-based systems, and that you have a working knowledge of digital assets. Such systems may have vulnerabilities or other failures, or other abnormal behaviour. NFStudio is not responsible for any issues with the Blockchains or other blockchain-based networks, including forks, technical node issues or any other issues having fund losses as a result. You further acknowledge that we are not responsible for any of these variables or risks and cannot be held liable for any resulting losses that you experience while accessing Services. Accordingly, you understand and agree to assume full responsibility for all of the risks of accessing and using and interacting with the Services.

13. Indemnity. You will indemnify, defend (at NFStudio's option) and hold NFStudio and its officers, directors, employees and agents, harmless from and against any claims, disputes, demands, liabilities, damages, losses, and costs and expenses, including, without

limitation, reasonable legal and accounting fees arising out of or in any way connected with (a) your access to or use of the Services, or (b) your violation of these Terms. You may not settle or otherwise compromise any claim subject to this Section without NFStudio's prior written approval.

14. General Terms.

(a) **Reservation of Rights.** NFStudio exclusively own all right, title and interest in and to the Services, NFStudio signature, NFStudio logos and NFStudio brand, excluding all art related to the NFT collections listed in the Services. If any, all copyright and IP rights of the art belong to its own creators. You agree not to remove, alter or obscure any copyright, trademark, service mark or other proprietary rights notices incorporated in or accompanying the Services.

(b) **Entire Agreement.** These Terms constitute the entire and exclusive understanding and agreement between NFStudio and you regarding the Services, and these Terms supersede and replace all prior oral or written understandings or agreements between NFStudio and you regarding the Services. If any provision of these Terms is held invalid or unenforceable by an arbitrator or a court of competent jurisdiction, that provision will be enforced to the maximum extent permissible, and the other provisions of these Terms will remain in full force and effect. Except where provided by applicable law in your jurisdiction, you may not assign or transfer these Terms, by operation of law or otherwise, without NFStudio's prior written consent. Any attempt by you to assign or transfer these Terms absent our consent or your statutory right, without such consent, will be null. NFStudio may freely assign or transfer these Terms without restriction. Subject to the foregoing, these Terms will bind and inure to the benefit of the parties, their successors and permitted assigns.

(c) **Waiver of Rights.** NFStudio's failure to enforce any right or provision of these Terms will not be considered a waiver of such right or provision. The waiver of any such right or provision will be effective only if in writing and signed by a duly authorized representative of NFStudio. Except as expressly set forth in these Terms, the exercise by either party of any of its remedies under these Terms will be without prejudice to its other remedies under these Terms or otherwise.

15. Contact Information. If you have any questions about these Terms or the Services, please contact NFStudio at legal@nfstudio.xyz.